

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Alexander Opoku-Agyemang	Team: Squad #05	CCRB Case #: 201503977	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 02/19/2015 5:00 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 8/19/2016	Precinct: 113		
Date/Time CV Reported Tue, 05/19/2015 11:22 AM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Tue, 05/19/2015 11:22 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Daniel Cruz	3302	936405	NARCBQN
2. DT3 Clifton Clarke	07333	916961	NARCBQN

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DT3 John Vitale	4855	947584	NARCBQN
2. SGT Alexander Lago	04365	932874	NARCBQN
3. POM Roberto Toribio	08715	948148	NARCBQN
4. POM James Woods	22157	947618	NARCBQN
5. CPT Kenneth Winters	00000	927683	NAR DIV
6. LT Philip Marks	00000	901913	NARCBQN
7. DT3 Dimitrios Roidis	07470	935638	NARCBQN
8. DT3 George Katris	1168	943427	NARCBQN
9. POM Eric Moy	04042	949373	NARCBQN
10. POM Stanley Jacquet	11222	943394	NARCBQN
11. DT3 Warren Savage	03257	929132	NARCBQN
12. DT3 Ducarmel Pierre	05770	925922	NARCBQN
13. DT2 Duane Shepherd	03172	902412	NARCBQN
14. DT3 Delcar Balcena	5757	943021	NARCBQN
15. DT3 Warren Brown	4570	943030	NARCBQN

Officer(s)	Allegation	Investigator Recommendation
A . DT3 Daniel Cruz	Abuse: Det. Daniel Cruz entered and searched § 87(2)(b) in Queens.	A . Exonerated
B . DT3 Clifton Clarke	Abuse: Det. Clifton Clarke failed to show search warrant to § 87(2)(b)	B . Substantiated
C . DT3 Daniel Cruz	Abuse: Det. Daniel Cruz failed to show search warrant to § 87(2)(b)	C . Substantiated
D . DT3 Clifton Clarke	Abuse: Det. Clifton Clarke did not obtain medical treatment for § 87(2)(b)	D . Unsubstantiated

Case Summary

§ 87(2)(b) filed this complaint on May 19, 2015, three months after the incident occurred.

§ 87(2)(g)

At approximately 5:00 a.m. on February 19, 2015, officers from Narcotics Borough Queens North entered and searched § 87(2)(b) in Queens (BR01) (**Allegation A**) pursuant to search warrant # § 87(2)(b) (BR02 & BR03), which was requested by Det. Daniel Cruz, § 87(2)(b)

§ 87(2)(b) and § 87(2)(b) were inside the house at the time and were arrested. § 87(2)(b) is the father of § 87(2)(b)'s children and § 87(2)(b) and § 87(2)(b) are his brothers. § 87(2)(b) and § 87(2)(b) resided in the house with the § 87(2)(b) s. § 87(2)(b) asked Det. Clifton Clarke to see a copy of the search warrant and he allegedly failed to show a copy to him (**Allegation B**). Det. Cruz allegedly did not provide a copy of the search warrant to § 87(2)(b) (**Allegation C**). While in the prisoner van, § 87(2)(b) allegedly requested medical attention from Det. Clarke. Det. Clarke allegedly stated that he would go talk to his “boss” and returned shortly thereafter and stated that “nothing could be done” (**Allegation D**).

All of the arrested individuals were charged with § 87(2)(b). In addition, § 87(2)(b) and § 87(2)(b) were charged with § 87(2)(b) and § 87(2)(b) and § 87(2)(b) were charged with § 87(2)(b) (BR04).

There was no video footage for this incident.

Mediation, Civil and Criminal Histories

As per the Comptroller’s Office, as of October 16, 2015, no Notice of Claim had been filed in regards to this incident (BR05). As a result of the arrests resulting from this incident, this complaint was deemed unsuitable for mediation. § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the first CCRB case involving § 87(2)(b) or § 87(2)(b) (BR07).
- This is the second CCRB case involving § 87(2)(b) § 87(2)(b)

- § 87(2)(b)
- Det. Cruz has been a member of the NYPD for ten years and has had four previous CCRB allegations in two cases with no substantiated allegations. § 87(2)(g)
 - Det. Clarke has been a member of the NYPD for 20 years and has had 16 previous CCRB allegations in 10 cases with one substantiated allegation. In CCRB case #200816329, a search of person allegation was substantiated against Det. Clarke. § 87(2)(g)

Potential Issues

The investigation was able to obtain statements from § 87(2)(b) and § 87(2)(b) following an initial missed interview appointment, on June 11, 2015, but had difficulty finding and attempting to obtain statements from the remaining civilians.

The arrest reports and other police documentation listed the addresses of all of the arrested individuals as the incident location. § 87(2)(b) § 87(2)(b)

LexisNexis searches for the remaining individuals, however, continued to show the incident location as their current residences. Letters were therefore sent to § 87(2)(b) and § 87(2)(b) at the incident location but these letters were returned by the US Postal Service.

§ 87(2)(b) was able to provide telephone numbers for § 87(2)(b) and § 87(2)(b) and stated that contact information for § 87(2)(b) could be obtained from § 87(2)(b). A call was placed to § 87(2)(b) at the number provided by his brother. § 87(2)(b) refused to provide a statement for the investigation but provided a telephone number for § 87(2)(b) though he stated that it may not be in service. Calls were placed to § 87(2)(b) at the number but an automated message stated that it was not in service. Another telephone number was obtained from § 87(2)(b) via a LexisNexis search. A call was placed to that number but an automated message stated that it did not accept incoming calls.

A call was placed to § 87(2)(b) at the number provided by § 87(2)(b). A male respondent stated that it was a “wrong number” and denied that he knew a § 87(2)(b). The arrest reports provided no telephone numbers for any of the individuals but provided telephone numbers that § 87(2)(b) and § 87(2)(b) had called while in custody. Three calls were made to the number that § 87(2)(b) called. On the first two occasions messages were left with a female respondent who acknowledged knowing § 87(2)(b) to have § 87(2)(b) call the CCRB. On the third occasion she agreed to provide an alternate number for § 87(2)(b) § 87(2)(b) was contacted at this number. He provided a telephone statement (BR08) and scheduled an interview appointment at the CCRB for August 5, 2015. § 87(2)(b) failed to appear for his interview appointment and did not call to cancel or reschedule. The CCRB called § 87(2)(b) on August 6, 2015, and an interview was scheduled at his new residence for August 12, 2015. On August 12, 2015, the CCRB Field Team went to § 87(2)(b)'s residence at the appointed time. No one

responded to the door and § 87(2)(b) did not pick up or call back in regards to several calls placed to him by the Field Team and the undersigned investigator.

Three calls were placed to the number that § 87(2)(b) called while in custody. On the first occasion a female who identified herself as § 87(2)(b) sister agreed to take a message for her. On the next two occasions voicemail messages were left requesting that § 87(2)(b) call the CCRB. However, following the third call, § 87(2)(b) sister called the CCRB and stated that she was not in contact with her sister and did not have any contact information for her. She stated that she wanted no part of the investigation and requested that the CCRB no longer call her number.

Findings and Recommendations

Explanation of Subject Officer Identification

The search warrant (BR02) and the warrant information sheet (BR03) identify Det. Cruz as the investigating and requesting officer for the warrant. § 87(2)(g)

Det. Clarke acknowledged having heard § 87(2)(b)'s request to see the search warrant. He identified Det. Cruz as the officer who was in possession of the search warrant but he was unsure whether he informed Det. Cruz of the request. Det. Cruz stated that he did not recall having been made aware of any such request but that, after the civilians had been taken out of the house, he left a copy of the warrant under the door. § 87(2)(g)

§ 87(2)(b) described a short black male officer in his 40s or 50s who was both the first officer with a shield who came up the stairs to the second floor and the officer who responded when the prisoners in the van requested assistance. Det. Clarke, a 5'5" tall § 87(2)(b)-old black male, was assigned, as per the pre-execution plan (BR09), as shield #2, which was identified by Det. Cruz as the bunker that went to the second floor when they entered the house. Furthermore, as per Det. Clarke himself and the tactical plan (BR09), he was assigned as the recorder in the prisoner van. § 87(2)(g)

Allegations not pleaded

§ 87(2)(b) in her initial complaint and her telephone statement, alleged that officers "took" § 87(2)(b) to the ground. In her sworn statement she stated that she was unsure whether officers "took" § 87(2)(b) to the ground or whether he went to the ground on his own. § 87(2)(b) stated that he went onto his knees on his own when he saw the officers and was in the process of laying down on the ground when he heard the voice of one of the officers telling him that he did not have to go on the ground. He remained on his knees and an officer handcuffed him. § 87(2)(g)

In her telephone statement, § 87(2)(b) alleged that § 87(2)(b) informed officers that § 87(2)(b) needed her medication and an officer replied, "We don't fucking do that." She also alleged that when he asked about the search warrant, an officer replied that they did not have to "fucking" show a warrant. However, in her sworn statement, she repeated these allegations but without the discourteous words. In his sworn statement § 87(2)(b) denied that he

heard any officers using discourteous language during the incident. § 87(2)(g)

§ 87(2)(b) and § 87(2)(b) alleged that, when they returned to § 87(2)(b) after they were released from police custody, it appeared that the officers had damaged several doors in the house, had removed a mirror from the bathroom wall, had damaged the walls, and had left the house in a general state of disarray. During her CCRB interview, § 87(2)(b) promised to email photos of the damages to the CCRB but failed to do so. A subsequent call was placed to her and she again promised to email the photos but never did so. § 87(2)(g)

§ 87(2)(b) stated that, at the stationhouse, § 87(2)(b) and § 87(2)(b) requested medical attention. Several officers, § 87(2)(b) could not recall which officers specifically, informed § 87(2)(b) and § 87(2)(b) that doing so would delay their arrest processing. The prisoners decided that they did not want to remain in police custody any longer than necessary and § 87(2)(b) and § 87(2)(b) chose not to seek medical attention. § 87(2)(b) denied having requested medical attention while at the stationhouse. § 87(2)(g)

In his telephone statement, § 87(2)(b) alleged that during his arrest, three officers grabbed him, one by the throat, and took him to the ground. He also alleged that, while in the prisoner van, an officer spoke to him discourteously and threatened to use force against him. § 87(2)(b) missed two interview appointments and did not provide a sworn statement in regards to this incident. § 87(2)(b) and § 87(2)(b) were not present for the force allegations and neither made the discourtesy or threat of force allegations in their sworn statement. § 87(2)(g)

Recommendations

Allegation A – Abuse of Authority – Det. Daniel Cruz entered and searched § 87(2)(b) in Queens.

§ 87(2)(b) filed her initial complaint via the CCRB website on May 19, 2015, and provided a telephone statement on May 20, 2015 (BR10). She and § 87(2)(b) were interviewed at the CCRB on June 11, 2015. A brief follow-up telephone statement was obtained from § 87(2)(b) on September 11, 2015 (BR11). A telephone statement was obtained from § 87(2)(b) on July 22, 2015 (BR08). Det. Cruz was interviewed by the CCRB on August 28, 2015, and Det. Clarke was interviewed on September 11, 2015.

It is undisputed that officers entered and searched § 87(2)(b) in Queens on February 19, 2015. The investigation found that the entry was conducted in regards to a valid search warrant, search warrant § 87(2)(b), issued on § 87(2)(b) (BR02 & BR03). It is therefore recommended that **Allegation A** be **Exonerated**.

Allegation B – Abuse of Authority – Det. Clifton Clarke failed to show search warrant to § 87(2)(b)

§ 87(2)(b)

§ 87(2)(b) informed the CCRB that, once she was placed in the van, her morning sickness, resulting from her pregnancy, began to “kick in.” The prisoners shouted for an officer to come. Det. Clarke came to the rear of the van and opened the door. In her sworn statement, § 87(2)(b) stated that she informed him that she needed her medication for her morning sickness and § 87(2)(b) informed him that he needed to urinate. In her telephone statement she stated that she informed him that she was sick and needed to vomit. Det. Clarke stated that he would go talk to his “boss.” He returned shortly thereafter and stated that “nothing could be done.” In her initial complaint § 87(2)(b) wrote that when she informed the officer of her “pregnancy issues” he told her to vomit in the van. On the way to the stationhouse she vomited in the prisoner van. At the 113th Precinct stationhouse, § 87(2)(b) vomited a second time onto the ground. At this point an officer, whom she did not specifically recall, identified via the investigation as Det. Clarke, brought a garbage can to § 87(2)(b) for her to vomit into. He also gave her water and chocolate. § 87(2)(b) stated that she did not bring up the issue of the medicine again and did not request medical attention while at the stationhouse.

When she was transported to Queens Central Booking, a nurse or EMT informed § 87(2)(b) that she appeared to be dehydrated and that she could not allow her to proceed to court in that state. She was transported to § 87(2)(b) 1. § 87(2)(a) PHL § 18(6) § 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

As per § 87(2)(b) when the officers were preparing to bring the prisoners downstairs, he stated to Det. Clarke that he had a sinus infection and needed his antibiotic medication. Det. Clarke did not respond and § 87(2)(b) did not ask again. § 87(2)(b) stated that, in the van, § 87(2)(b) “never asked for medication [but] she specifically let it be known that she was sick and she needed special attention” and that § 87(2)(b) requested to urinate. Det. Clarke responded, “I’m going to see if I can do something about that,” and then left. When he returned Det. Clarke stated, “We gonna go take this to the precinct,” and then closed the door of the van.

§ 87(2)(b) stated that, at the stationhouse, § 87(2)(b) and § 87(2)(b) requested medical attention. Several officers, § 87(2)(b) could not recall which officers specifically, informed § 87(2)(b) and § 87(2)(b) that doing so would delay their arrest processing. The prisoners decided that they did not want to remain in police custody any longer than necessary and § 87(2)(b) and § 87(2)(b) chose not to seek medical attention.

§ 87(2)(b) stated that, while in the van, he needed to use the bathroom and began kicking the door of the van. Det. Clarke opened the door of the van and § 87(2)(b) who had thrown up in the van, told Det. Clarke, “I don’t feel good; I’m pregnant, I don’t feel my baby moving.” Det. Clarke replied, “Give us a second” and left but did not return.

Det. Clarke did not recall any prisoners requesting medical attention or medication, specifically in regards to pregnancy, an injury, or a sinus infection. Det. Clarke did not recall having spoken to any

Det. Clarke recalled having been aware that § 87(2)(b) was pregnant and having observed her vomiting at the stationhouse while in the holding cell, though he did not recall having been aware of her having vomited at any point in the prisoner van. He recalled having moved a trashcan closer to § 87(2)(b) and having given her chips and water from the vending machine after she vomited at the stationhouse. § 87(2)(b) never asked Det. Clarke for medical attention, medication, or to go to the hospital and he was unaware of her having requested medical attention or medication from other officers.

§ 87(2)(g)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)		
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		§ 87(2)(b)

CCRB – Confidential

Squad: 5

Investigator: _____ Alexander Opoku-Agyemang October 28, 2015
Signature Print Date

Pod Leader: _____
Title/Signature Print Date

Attorney: _____
Title/Signature Print Date